IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Application for Orders in the nature of Writs of Certiorari, Prohibition and Mandamus under Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

Jude Jihan Amunugama
424/2/A Mahimpitiya Road,
Dandagamuwa,
Kuliyapitiya

CA (Writ) App. No. 567/2024

PETITIONER

Vs.

1. Thushara Upuldeniya,
   Commissioner General of Prisons,
   Prison Headquarters,
   No.150, Baseline Road, Colombo 09.

2. M. Donald Murage,
   Commissioner of Prisons (Human Resource),
   Prison Headquarters,
   No.150, Baseline Road, Colombo 09.

3. H.A.D.P.W Hettiarachchi,
   Administrative Officer II

Prison Headquarters,
No.150, Baseline Road, Colombo 09.

4. B.D.M.G.B. Dissanayake,
   Commissioner of Prisons
   (operations/intelligence),
   Prison Headquarters,
   No.150, Baseline Road, Colombo 09.

5. Public Service Commission,
   No. 1200/9, Rajamalwatta Road,
   Battaramulla.

6. Sanath Ediriweera,
   Chairman,
   Public Service Commission,
   No. 1200/9, Rajamalwatta Road,
   Battaramulla.

7. W.H.M.M.C.K. Dayaratne,
   Secretary,
   Public Service Commission,
   No. 1200/9,
   Rajamalwatta Road,
   Battaramulla.

8. H.A. Chandana Kumarasingha,
   Director General of Establishments,
   Independence Square, Colombo 7.

9. National Salaries Commission,
   Bandaranayake Memorial International
   Conference Hall,
   Colombo 7.

10. M.U.M. Ali Sabry, PC,
    Minister of Justice, Prisons Affairs and
    Constitutional Reforms of Sri Lanka,
    No. 19, Sri Sangaraja Mawatha,
    Colombo 01.

10(a) Harini Amarasooriya,
Minister of Justice, Public
Administration, Home Affairs,
Provincial Councils,
Local Government and Labour,
No.19, Sri Sangaraja Mawatha,
Colombo 10

11. M.N. Ranasinghe,
Secretary,
Ministry of Justice, Prisons Affairs and
Constitutional Reforms of Sri Lanka,
No.19, Sri Sangaraja Mawatha,
Colombo 10.

11(a) S. Alokabandara,
Secretary,
Ministry of Justice, Public
Administration, Home Affairs,
Provincial Councils, Local
Government and Labour,
No.19, Sri Sangaraja Mawatha,
Colombo 10.

12. Hon. Attorney General,
Attorney General's Department,
Hulfsdorp,
Colombo 12.

13. T.W.P.Siriwardene,
Prison Headquarters,
No.150, Baseline Road,
Colombo 09.

14. M.D.Pushpakumara,
Prison Headquarters,
No.150, Baseline Road,
Colombo 09.

15. G.P.J.P.C. Ekanayaka,

Kalutara Prison, Kalutara.

16. K.P.R. Piyumal,
    Galle Prison, Prison Road, Galle.

17. Pala Thanthirige Lalith Wasantha
    Nanayakkaara,
    No.75/5, Nugagahalanda Place,
    Malapalla, Homagama.

18. Lakmini Pradeepika
    Abeygunawardena,
    No.35/12, Asoka Mawatha,
    Madawalamulla, Galle.

19. Olupathage Upul Sri Chandana Silva,
    No. 154 1/3, Lesely Perera Mawatha,
    Ethanamadala, Kaluthara.

20. Chamil Nishantha Nallaperuma
    Arachchi,
    Nishantha, Nagahathalla,
    Sulthanagoda, Matara.

21. Ellevela Vidana Gamage Priyantha
    Pushpakumara,
    No.360-B, Mahawatta, Pinkumbura,
    Kumbalgama, Devinuwara.

22. Nammuni Kankanamge Ruwan
    Gamini Silva,
    No.309/4, Thalagahawatta,
    Thanthirimulla, Panadura.

23. Don Udaya Kumara Meranchi
    Abeyesekara Shanthi,
    Pathagama, Kottagoda, Matara.

24. Indrani Kothalawala,
    No.114, Honnanthara South,
    Piliyandala.

25. Rotuwe Gedera Sudeera Lakmal Gunasekara,
Badulpitiya, Makehelwala,
Mawanella.

26. Dinidu Pranceth Senevirathne,
Nidahas Mawatha,
Pothanegama, Anuradhapura.

27. Rupasinghe Appuhamilage Samantha Rasith Rupasinghe,
No.6/A, Singhe Sewana,
Yatiyana, Minuwangoda.

28. Nepotage Hemantha Pradeep,
No.216/01, Kurana,
Handapangoda.

29. Chamal Devinda Wickramasinghe,
No.55, Muthuminigama,
Sevanagala.

30. Gayan Dimuthu don Alwis,
No.92/1, Ihala Weediya,
Padiyathhalawa.

31. Rathnayaka Mudiyanselage Eranda Manupriya Rathnayaka,
No.B32/1, Ganegama, Dorakawa,
Warakapola.

32. Welimuni Chameera Pradeep Silva,
No.89/A, Mullapitiya,
Beruwala.

33. Mapa Hamilage Hemantha Pushpa Kumara,
No.577, Jayanthipura,
Polonnaruwa.

34. A.H.S.B. Ariyapala,
No. 244/1A, Kanupelella,
Badulla.

35. M.A.T.I. Jayawardena,
No. 279/8, "Windpath"
Mankada Road, Jalthara,
Padukka.

36. S.H.P.M. De Silva,
Chamidhi Kokwaththa,
Habaraduwa.

37. R.P.R. Seelarathna,
No. 60/40, Lakmali,
Kondeniyawaththa, Dikwella.

38. T.N. Wijesooriya,
No. 5/45, Badulupitiya Road,
Badulla.

39. A.M.D.C. Abeysinghe
No. 32/01, Ithhamalliyagoda,
Menikhinna.

40. H.D.N.S. Jayarathne,
No. 473/02, Kospelena,
Polpitimukalana, Kandana.

41. G.C. Bulathsinhala,
Thunandahena, Dodampe,
Rathnapura.

42. A.S.M.U.P.B. Samarakoon,
No. 13, Dambarawa, Kundasale.

43. Y.M.H.S. Jayasundara,
Heenabowa, Rambukkana.

RESPONDENTS

Before: Dr. D. F. H. Gunawardhana, J.

Counsel:

Yoosuf Nasar with Dimuthu Jayawardhana instructed by Eksith Madawala for the Petitioner.

Rajin Gunaratne, S.C. for the Respondents, except the 1st Respondent.

Argued on: 28.01.2026

Delivered on: 06.03.2026

Dr. D. F. H. Gunawardhana, J.,

Judgement

Introduction

The Petitioner is a Class II Jailor employed in the Prison Department. The Petitioner applied to become a Class I officer in response to the advertisement, a copy of which is marked and annexed to the Petition as **P3**. However, the Petitioner was not selected after the interview followed by the written exam and was therefore not promoted to Class I. In those circumstances, the Petitioner challenges the very process and the appointments of certain Respondents, namely the 13th to 16th Respondents, by this application.

The 1st Respondent is the Commissioner General of Prisons, the 2nd Respondent is the Commissioner of Prisons (Human Resource), the 3rd Respondent is the Administrative Officer of the Prison Department, while the 4th Respondent is the Commissioner of Prisons (operations/intelligence) to the Prison Department, who was also the head of the interview board at the relevant time. The 5th Respondent is the Public Service Commission, and the 6th Respondent is its chairman while the 7th Respondent is its secretary. The 8th Respondent is the Director General of Establishments, and the 9th Respondent is the National Salaries Commission. The 10th Respondent is the Minister of Justice, and the 11th Respondent is the Secretary to the Ministry of Justice. The 12th Respondent is the Honourable Attorney General. The 13th to 16th Respondents are employed under the Prisons Department, now promoted as Class I Jailors. The Petitioner challenges their appointment in addition to the promotion process, including the advertisement calling for applications, and thereafter, the decision to extent the period of application and the grace period given to the cadre of the Jailors to apply for the said examination.

After the issuance of the formal notice, the Respondents have filed their respective formal objections and moved for the dismissal of the application on several grounds. This application was argued before me on 28.01.2026, and the following arguments were advanced by Counsel. Hence, this Judgment;

Arguments

Mr. Nasar, the Counsel for and on behalf of the Petitioner, contended that the 13th to 16th Respondents were not qualified to apply at the time the applications were called for since they were not serving in Class II. In addition to that, he contended that some of the said Respondents were not even been made permanent in Class II.

In addition to that, to accommodate the 16th Respondent, who had been the Secretary to the 1st Respondent, after calling for applications, the 1st Respondent had changed the criteria of selection, which is irrational and illegal. Further, he argued that after the results were released, the Petitioner was dissatisfied, and he made an appeal to the Public Service Commission (PSC), but no response came from them.

On the other hand, Mr. Gunaratne argued that since the PSC never received such an appeal, they had not responded. In fact, the Petitioner had not gone to the PSC after the publication of **P9**.

The next contention is that except the 15th Respondent, all the Respondents were qualified to apply for the said Class I appointments as their application itself have established that, which is also filed of record as **R6a to R6d**. Even the 15th Respondent who had not been made permanent in the Class II cadre, later on the application made by him on special concession, after obtaining only he had applied and therefore, qualified to be an officer of Class I.

The said appeal and response are marked as **R3** and **R4** annexed to the Petition respectively. The time period for the applicants to make their applications was extended and some of the qualifications were also changed during the course as established by **P4** and **P5**. Therefore, the Petitioner cannot make any complaint based on that.

Finally, he argued that although the Petitioner has challenged the short-list of **P8**, he has not challenged the final results contained in **P10**, where the final selection of the officers names appear. Therefore, without also challenging **P10**, it renders negatory to challenge **P8** only. Thus, this Application must be dismissed.

Factual matrix

The Petitioner asserts that, having secured an appointment as a Prison Guard in 1999, he had obtained due promotions, and having secured his last promotion, he was placed as a Jailor Class II with effect from 20.03.2014. In addition to that, he asserts that he has passed the Efficiency Bar exams of the Public Management Assistants' service including the oral test of Awkward Languages for the promotion of Class II Jailors; all of which are reflected in the documents marked and annexed to the Petition as **P1(I-VII**), to establish the fact that the Petitioner is qualified to apply for the post of a Class I Jailor.

The Petitioner asserts that the applications were called for through an advertisement published by the 1st Respondent for the purpose of filling vacancies in the Jailor Class I cadre (31 Male candidates and 3 Female candidates); the copy of the said advertisement is marked and annexed to the Petition as **P3**, and the timeline given in the said advertisement is 07.03.2024. According to the notice **P3**, no application would be accepted after the deadline (07.03.2024) had passed; however, to the surprise of the Petitioner, after a few days had lapsed, the closing date for the

submission of applications had been extended till 21.03.2024, by the document marked as **P4** annexed to the Petition and dated 12.03.2024.

Further, by the document marked as **P5**, the 1st Respondent has changed the criteria for promotions by allowing those who had not passed the Efficiency Bar exam and given them a grace period to pass it before the next date. As such, the Petitioner alleges that by extending the deadline for accepting applications, and by changing the eligibility criteria subsequent to the said deadline by **P5**, was done to create opportunities for the supporters and favourites of the 1st to 4th Respondents; thereby creating a conducive opportunity to the unqualified people, and depriving the Petitioner and other eligible candidates to the promotions of the Jailor Class I cadre. Therefore, the Petitioner alleges that **P4** and **P5** are capricious, irrational, illegal, and violative of the rules of natural justice.

The Petitioner further alleges that a document was published, dated 05.05.2024, under the hand of the 2nd Respondent, calling for the candidates to an interview, and the names of those who had applied after the initial closing date were also included in the said list marked and annexed to the Petition as **P6**. Therefore, the Petitioner alleges that the said Respondents have not been qualified to apply for a post as a Class I Jailor when the advertisement **P3** was published. Only publishing **P4** and **P5** by the 1st to 4th Respondents had created opportunities for them to be qualified and eligible to apply, the said 13th to 16th Respondents were able to apply and get qualified to become Class I Jailors; thus, the Petitioner also states that the list **P6** is erroneous.

The Petitioner states that thereafter another letter marked as **P7** had been published, dated 01.06.2024 to the shock and dismay of the Petitioner, that a grace period had also been given to those who had not been able to complete the said Efficiency Bar examination; thus, the Petitioner states the said letter is irrational as well.

The names of the candidates who were selected was published and appear in the document marked as **P8**, which includes the names of the 13th to 16th Respondents; thus, the Petitioner challenges this.

The Petitioner states that he has appealed against the said decision contained in **P8** to the relevant officers, and the copies of the same have been marked as **P9** annexed to the Petition. However, his appeal was turned down by the letter marked and annexed to the Petition as **P10**. Accordingly, the Petitioner also challenges the said document as well, and sought *inter alia* the following relief;

> *"c) Grant and issue an order in the nature of a Writ of Certiorari calling and quashing the said decision to appoint the candidates for the post of Jailor Class I as reflected in the document marked P8 to the Petition;*
>
> *d) Grant and issue an order in the nature of a Writ of Certiorari calling for and quashing the said decision and/or any consequential steps taken in pursuance of the said decision as reflected in the document marked P8 to the Petition;*
>
> *e) Grant and issue an order in the nature of a Writ of Mandamus compelling the 1st – 4th Respondents and/or any one or more of them to reconsider the selection to the Jailor Class I in terms of the Scheme of Recruitment dated 22nd February 2024 marked P3 to the Petition;*
>
> *f) Grant and issue an order in the nature of a Writ of Mandamus compelling the 1st – 4th Respondents and/or any one or more of the Respondents to not appoint the 13th to 16th Respondents and/or anyone one or more of the selected candidates with similar standing to the said post of Jailor Class I;*

g) Grant and issue an order in the nature of a Writ of Mandamus compelling the 1st – 4th Respondents and/or any one or more of the Respondents to appoint the next 4 candidates in terms of P8 to the post of Jailor Class I;

h) Grant and issue an order in the nature of a Writ of Mandamus compelling the 1st – 4th Respondents and/or any one or more of the Respondents to appoint the Petitioner to the post of Jailor Class I;

i) Grant and issue an order in the nature of a Writ of Prohibition, preventing and restraining the 1st – 4th Respondents and/or any one or more of the Respondents and/or their servants/agents/subordinates and successors, from acting and/or proceeding to take any steps/decisions based on the said decision reflected in the document marked as P8 to the Petition;"

The 1st to 16th Respondents have filed their respective Objections, and according to their Objections, the 13th to 16th Respondents had already been eligible to apply by the time the first advertisement **P3** was published; the applications submitted by the 13th to 16th Respondents are annexed to the Objections marked as **R6a** to **R6d**.

In addition to that, it is further stated that, the extension of the time period for accepting applications had been decided at the request made by the Ministry of Justice since some of the employees in the cadre of Jailors had made an appeal to the Minister of Justice to extend the period to create an opportunity for them to apply as well. Accordingly, the said period had been extended.

Additionally, as the grace period for the Efficiency Bar exam had been extended following the circulars issued by the Public Service Commission; therefore, it is the position of the Respondents that they have not violated any rules or regulations pertaining to the promotion process.

Further, it is the position of the Respondents, that the 13th to 16th Respondents had already been promoted to the Class I Jailor posts, with effect from 06.09.2023 by the letters marked as **R10a** to **R10d**. In addition to that, the female Jailor Class I was also appointed as reflected by the document marked as **R9**. Therefore, this Application is futile.

The list of the successful candidates who were called for the interviews is marked as **R7**, and the names of the successful candidates are also marked as **R8**. Therefore, the Petitioner, without challenging **R7** and **P6**, cannot now challenge **P3** and **P8** since a lot of water has passed under the bridge.

It is also the position of the Respondents that the Petitioner cannot maintain this Application since he has not adverted to any alternative remedies, including an appeal to the PSC, and if still unsatisfied, to the Administrative Appeal Tribunal.

Now I will consider them.

I considered the pleadings presented as well as the oral submissions and written submissions advanced by all the parties; namely, the Petitioner on one side, and the 1st to 16th Respondents on the other.

The Petitioner's Application is premised on several grounds:

(a) The 1st to 3rd Respondents have not followed the Public Service Commission Circular of Recruitment

(b) The 1st to 3rd Respondents have extended the time period for the applications to be submitted

(c) Those who have not passed the Efficiency Bar exams and language proficiency test were given a grace period to pass the same.

Therefore, the Petitioner was prejudiced by such course of action.

On the other hand, as mentioned above, the Respondents have clearly stated that they have followed the Public Service Commission Circular of Recruitment, and that the deadline for the submission of applications was extended at the request of the Minister. Further, the grace period to obtain the results of the Efficiency Bar exam and language proficiency exam was also granted at the request of the Miniter, made consequent to the request of certain Class II officers.

The Respondents rely on the following contentions;

(a) The Petitioner has not recourse to alternative remedies; therefore, a writ being a discretionary remedy, should not be issued.

(b) the Petitioner has not come within a reasonable time, and this Application cannot be maintained as the appointments have already been made and the 13th to 16th Respondents, along with the other appointees, are now functioning for a considerable period in the capacity of their substantive position as Class I officers.

Now I will consider these Objections along with the relevant complaints of the Petitioner. Accordingly, first, I will see whether the 1st to 3rd Respondents have followed the Public Service Commission circulars, because not only will it affect their appointment, but it might affect the entire system since the Petitioner had not made the Appeal Application at the relevant time before the relevant forum.

The Respondents followed the Public Service Commission Circular

The relevant Public Service Circular is filed along with the Objections as **R1**, which clearly indicates the criteria for the applicants to be eligible to be called for the interview after sitting for the said exams, as well as the criteria required to be followed after the interview, to select and be

appointed as Class I officers. Upon consideration of the same, it is my view, that the Respondents have not violated or flaunted the relevant rules of the said circular; therefore, even at the time of advertising to invite the applicants to apply, the Respondents have not violated or flaunted the rules marked as **R1**.

Extending the deadline

The next question that arises for my consideration is whether extending the deadline for the applications to be submitted, and the grace period given for the Class II officers to obtain the required results of the language proficiency exam and Efficiency Bar exam was illegal.

These extensions had been so given at the request of the Minister since some of the Class II applicants had made an appeal to the Ministry, requesting it to allow them to pass the said relevant exams as some of them had not passed the same at the time of calling for applications. Thus, this request was extended by the 1st to 3rd Respondents, thereby extending the grace period for the Class II officers to obtain the said required proficiency qualifications is postponed.

However, the Petitioner has failed to establish how such extension of the application submission deadline and the said grace period for the Class II officers to obtain the necessary qualifications before their appointment, had prejudiced the Petitioner; because the Petitioner has not obtained sufficient marks, and by these extensions, many officers in the Class II cadre were given the opportunity to compete, efficiencies, and capabilities on merits and thereby, enabling the 1st to 3rd Respondents to be able to test them at the relevant written exam and oral interview. As such, the Petitioner failed to establish that prejudice was caused to him, other than for the real competition that enhanced the competitiveness of the exam, allowing more people to be given the opportunity

to compete against each other for the limited number of vacancies in the Class I cadre to maintain high standards.

Secondly, the Petitioner failed to establish that such extension of the deadline for the submission of applications and the said grace period had unduly benefitted the 13th to 16th Respondents and other appointees to the Class I cadre, because on the perusal of the Respondents' applications referred to above, the 13th to 16th Respondents had already been qualified to apply for the position since they had already served the relevant number of years as Class II officers, except for certain Respondents who did not have the required the language proficiency qualification and Efficiency Bar exam results.

On a perusal of the record, I found the documents marked as **R6a** to **R6d**, the applications submitted by the 13th to 16th Respondents to be promoted as Jailors of Class I, and by the time that they had applied, they were eligible to apply to the same as advertised in **P3**. Additionally, they have submitted their applications within the timeframe given in the said **P3.**

Since the grace period was extended, some of them benefitted; however, not unduly because they all had to compete with each other, including with the Petitioner, who was unable to compete successfully with them as he could not score the relevant cutoff marks at both exams, and thereby, placing him below the Respondents. As such, the competition expected among the officers to become a Class I officer through the said written exams and interview were achieved by the 1st to 3rd Respondents; therefore, it is my view that the Petitioner has not made out a case against any of the Respondents.

Alternative remedies

Further as the Respondents raised the Objection on the alternative remedies, the Petitioner still could have appealed to the PSC, and from there, to the Administrative Appeal Tribunal which alternative remedies the Petitioner has not recoursed to. Therefore, the Petitioner, without recoursing to available alternative remedies, has straight away sought to invoke the writ jurisdiction which he cannot do; thus, it is my view that the Petitioner's Application should fail.[1]

Further, the Petitioner has not explained as to why he did not appeal against the order when the results were published before the appointments of the 13th to 16th Respondents and other officers who were promoted to the Class I cadre, before they were appointed. The Petitioner has not explained the delay; therefore, such delay should be considered as inordinate delay.[2]

Futility of this Application

In any event, the 13th to 16th Respondents have already been appointed by the documents marked as **R10(a)**, **R10(b)**, **R10(c)**, and **R10(d)** with effect from 06.09.2023. Accordingly, as argued by the Respondents, this Application has become futile.

Delay

The Petitioner has instituted this Application on 04.09.2024, and the advertisement first published calling for applicants to submit their applications was released on 22.02.2024, as marked in the document **P3** annexed to the Petition. Therefore, to challenge **P3**, there has been significant lapse of time, and he has failed to provide an explanation as to what caused him this delay. Therefore,

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[1] *Ishak v. Lakshman Perera, DG of Customs* [2003] 3 SLR 18; *Dialog PLC v. DG Customs* (CA (Writ) Application 464/2008)*; Linus Silva v. The University Council of the Vidyodaya University* [1964] 66 NLR 505.

[2] CA (Writ) Application 371/21 (CA Minutes 22.09.2021)

this unexplained delay should be considered as inordinate delay. As such, it is my view that such inordinate delay defeats this type of Writ Application.

Conclusion

For the reasons adumbrated above, it is my view that the Petitioner's Application should fail, and accordingly, I dismiss the same without costs.

JUDGE OF THE COURT OF APPEAL